

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MICHELLE POMALES,

Plaintiff,

-against-

THE CITY OF NEW YORK,
DETECTIVE JOHN O'LEARY and
DETECTIVE CHRISTOPHER VANWEDDINGER,

Defendants.
----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 24, 2016

SIVIN & MILLER, LLP

By 

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o Zachary W. Carter, Esq., 100 Church St., NYC 10007

John O'Leary: c/o Narcotics Borough Manhattan, One Police Plaza, Rm. 1100, NYC 10038

Christopher Vanweddinger: c/o Narcotics Borough Manhattan, One P.P., Rm. 1100, NYC 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
MICHELLE POMALES,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
DETECTIVE JOHN O'LEARY and
DETECTIVE CHRISTOPHER VANWEDDINGER,

Defendants.

----- X

Plaintiff, by her attorneys SIVIN & MILLER, LLP, as and for her complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a citizen of the United States and a resident of the State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter "the City") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, notice of claims and intention to sue were duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notices of claim and intention to sue were presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of

action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, maintained, and supervised the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant John Oleary (hereinafter “Oleary”) was and is an officer employed by the NYPD.

6. That at all times herein mentioned, Oleary was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Oleary was acting under color of state law.

8. That at all times herein mentioned, defendant Christopher Vanweddinger (hereinafter “Vanweddinger”) was and is an officer employed by the NYPD.

9. That at all times herein mentioned, Vanweddinger was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Vanweddinger was acting under color of state law.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about April 2, 2015, in the County of New York, City and State of New York, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including Oleary and Vanweddinger (hereinafter “the officers”), without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly seized

plaintiff by directing her to exit the motor vehicle in which she was a passenger.

13. That after plaintiff complied with defendants' directive that she exit the motor vehicle, the officers searched plaintiff's person by patting her down and going through and into the pockets of her clothing, and also searched through plaintiff's purse and motor vehicle.

14. That the aforementioned search of plaintiff was undertaken without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, without plaintiff's consent, and without otherwise being justified.

15. That the officers then handcuffed and formally arrested plaintiff, again without a warrant and without probable cause, reasonable suspicion, or justification, and without permission or consent.

16. That thereafter the officers continued forcibly to detain plaintiff against her will at various locations, including a police van and a police precinct, until plaintiff was released from custody the following day.

17. That during the time she was in defendants' custody, plaintiff repeatedly complained that the handcuffs that were placed on her were too tight and that she was in pain.

18. That despite her repeated complaints, defendants failed and refused to loosen or otherwise adjust plaintiff's handcuffs.

19. That on or about April 2, 2015, the officers also initiated and/or caused to be initiated a prosecution of plaintiff, charging her with a crime (Criminal Possession of a Controlled Substance in the Seventh Degree) of which she was innocent and of which the officers knew plaintiff to be innocent.

20. That plaintiff had not committed the aforesaid crime and was not unlawfully in possession of a controlled substance, and the officers knew that plaintiff had not engaged in and

that they did not have probable cause or reasonable suspicion to believe that plaintiff had engaged in such conduct.

21. That as a consequence of this prosecution, plaintiff was required to attend court on numerous occasions and was restricted in her liberty and travel.

22. That on or about February 9, 2016, the criminal charge against plaintiff was dismissed and the criminal proceeding resulted in a termination favorable to plaintiff.

23. That the aforesaid actions by Oleary and Vanweddinger were intentional, spiteful, and malicious in nature.

24. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of defendants constitute an assault and battery against plaintiff, for which Oleary and Vanweddinger are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of defendants constitute a false arrest and false

imprisonment of plaintiff, for which Oleary and Vanweddinger are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of defendants constitute a malicious prosecution of plaintiff, for which Oleary and Vanweddinger are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS
OLEARY and VANWEDDINGER
(42 USC § 1983 Claim Arising From Fourth and Fourteenth Amendment Violations)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of defendants Oleary and Vanweddinger constitute illegal searches and seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendment to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid incident and resulting damage to plaintiff was due to the

negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the involved NYPD officers, including Oleary and Vanweddinger.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(“Monell” Claim)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

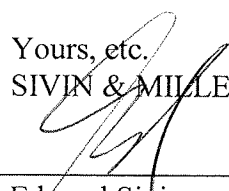
36. That the aforesaid incident and resulting damage to plaintiff was due a deliberate indifference by the City to a pattern of unconstitutional conduct by Oleary and Vanweddinger, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

37. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Oleary and Vanweddinger, and attorney’s fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
June 24, 2016

Yours, etc.
SIVIN & MILLER, LLP

By 

Edward Sivvin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

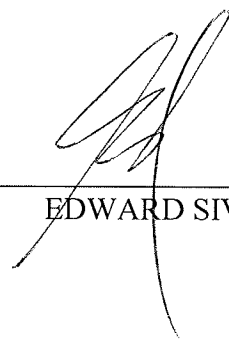
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
June 24, 2016



EDWARD SIVIN

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Year 2016

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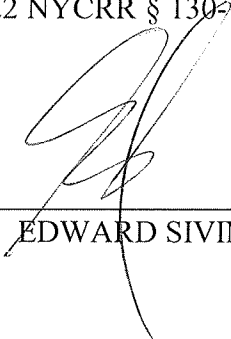
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

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(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
June 24, 2016